

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Johnson Space Center
Justification for an Exception to Fair Opportunity

Description of the action being approved: This justification documents the basis for issuing Task Order NOIS3-038: Minority University Research and Education Project (MUREP) Partnership Learning Annual Notification (MPLAN) 2026 under the NASA Open Innovation Services 3 (NOIS3) contract using an exception to the Fair Opportunity process.

Description of the supplies or services required to meet the Agency's needs: This action is a firm fixed price order with a total funding of \$1.5 million. Period of performance from date of award to December 31st, 2026.

The Center of Excellence for Collaborative Innovation (CoECI) was created in November of 2011 at the request of the White House Office of Science and Technology Policy (OSTP) to help NASA and other Federal Agencies advance their use of open innovation and crowdsourcing models. CoECI guides NASA and other Agency teams on all aspects of implementing crowd-based initiatives, from problem definition, to incentive design, to post-submission evaluation of solutions. CoECI also provides access to its contracts through assisted acquisition Interagency Agreements.

NASA intends to issue Task Order NOIS3-038 as a sole-source to HeroX. The objective of Task Order NOIS3-038 is to continue the NASA MUREP Partnership Learning Annual Notification (MPLAN) program into the calendar year 2026. MPLAN aims to empower Minority Serving Institutions (MSIs) by providing financial resources to foster idea development, facilitate research and development, and engage stakeholders in critical STEM fields. Through the contractor, MPLAN will award up to \$50,000 to a maximum of 25 MSI winners. The contractor has run the MPLAN project for three years, and has an established challenge design, judging and participant support system, and is expertly poised to process the award payments to all MPLAN awardees.

Identification of Exception to Fair Opportunity:

☒ FAR 16.505(b)(2)(i)(C), The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

Supporting Rationale:

HeroX's involvement in this activity under the prior NOIS2 award uniquely positions it to manage the prize payments for this task to ensure continuity of the NOIS2-106 competition since its inception three years ago. Their direct involvement throughout all phases of the challenge—including design, launch, participant engagement, and final award decisions—gives them unmatched familiarity with the MPLAN program's mission, design, and goals. Utilizing HeroX at this stage preserves continuity and avoids unnecessary rework. Transitioning to a different contractor at this time would undermine the efficiency and

economy intended by this sole-source follow-on, introducing significant delays, added costs, and operational risk.

Determination that the anticipated cost to the Government will be fair and reasonable:

The Government will ensure that it obtains fair and reasonable pricing from the contractor on Task Order NOIS3-038. The Government compared the proposed pricing to historical pricing associated with prior MPLAN task order awards performed by the same contractor over the past three years. Specifically, the comparison focuses on the overall pricing structure and level of effort which are consistent with amounts awarded under previous MPLAN task orders. The proposed award amounts up to \$50,000 does not represent an increase over historical award levels and aligns with prior contract awards for comparable work. Accordingly, the proposed price for Task Order NOIS3-038 is consistent with historical pricing and is considered fair and reasonable

Other Facts:

The Contracting Officer will continue to examine the market in the future for alternative solutions or new sources before executing any subsequent acquisitions for the same requirements.

A statement of the actions, if any, the Agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made: N/A - This is a follow-on task order requirement from the NOIS2 contract.